

Farhan Rasool v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 25 November 2019 · Writ-C No. 38249 of 2019 · Writ-C No. 38249 of 2019 · **Writ disposed of; petitioner relegated to Clause 6.5 of the U.P. Electricity Supply Code, 2005, with a time-bound speaking-order direction and limited stay of coercive recovery.**

HEADNOTE

A writ seeking to quash a recovery citation for electricity dues is not entertained where the consumer disputes the correctness of the bill. Clause 6.5 of the U.P. Electricity Supply Code, 2005 is the statutory remedy. The petitioner was given two weeks to approach the competent authority, which was to decide within 30 days by a speaking order after hearing. Coercive action was stayed for 40 days or until that decision, whichever earlier; the stay lapses if the petitioner does not approach in time.

FACTUAL SUMMARY

Farhan Rasool petitioned the Allahabad High Court to quash a recovery citation dated 25 September 2019, issued pursuant to a notice dated 10 July 2019 under section 5 of the Uttar Pradesh Government Electricity Undertakings (Dues Recovery) Act, 1958, seeking recovery of Rs. 2,65,659 as electricity dues. He disputed the correctness of the bill raised against him. Counsel for the Electricity Department appeared. The Court did not examine the bill or the citation on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute — statutory alternative remedy

HOLDING

Where a consumer challenges a recovery citation for electricity dues by disputing the correctness of the bill, the writ court will not entertain the petition because Clause 6.5 of the U.P. Electricity Supply Code, 2005 affords a statutory remedy. The consumer may approach the appropriate authority, which is to consider and decide the grievance in accordance with law by a speaking order after hearing; coercive recovery may be stayed for a limited period pending that approach, but the stay ceases if the consumer does not approach within the time allowed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE ELECTRICITY BILL AND VALIDITY OF THE RECOVERY CITATION DATED 25.09.2019

Left to the Clause 6.5 authority; writ not entertained on merits. ¶ 1